Pre-employment Screening Guideline

Office of the Commissioner for Public Employment

NORTHERN TERRITORY GOVERNMENT

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Acronyms	Full form
Commissioner	Commissioner for Public Employment
NTPS	Northern Territory Public Sector
OCPE	Office of the Commissioner for Public Employment
PSEMA or the Act	*Public Sector Employment and Management Act 1993* (NT)

Foreword

Nicole Hurwood
Commissioner for Public Employment

The Northern Territory Public Sector (NTPS) is built on trust, accountability, and ethical practice. Every appointment we make reflects our commitment to integrity, commitment and to serving the people of the Northern Territory responsibly. Pre-employment screening is not just a procedural step, it is a cornerstone of safeguarding public confidence and ensuring that our workforce exemplifies the values of the NTPS.

As Commissioner, I am proud of the work we have done to strengthen integrity frameworks and embed integrity and suitability across our recruitment processes. These efforts ensure that individuals engaged in the NTPS are suitable, capable, and aligned with our values.

Pre-employment screening is a mandatory and essential component of NTPS recruitment. It verifies identity, integrity, and suitability, ensuring that public resources are managed responsibly and that our workplaces remain safe, professional, and trusted.

An effective screening framework ensures applicants:

- Are who they claim to be, with verified identity and legal entitlement to work in Australia.
- Possess the qualifications, skills, and experience required for the role, as claimed.
- Provide referees who are relevant, recent, and able to attest to demonstrated work performance.
- Have no history that would make them unsuitable for NTPS employment, such as serious misconduct, relevant criminal convictions, or actions that could bring the NTPS into disrepute.
- Are fit to perform the duties of the role, both physically and professionally.

This guideline outlines the NTPS pre-employment screening process and complements the mandatory Merit Selection Training, which employees must complete before participating on a selection panel, and refreshed at least once every three years.

Your commitment to these principles ensures that the NTPS remains an employer of choice, one that values integrity, protects public trust, and recognises that our people are our greatest asset.

For more information on pre-employment screening please contact Public Sector Appeals and Grievance Reviews on 8999 4129 or via email at psagr@nt.gov.au.

Nicole Hurwood

Commissioner for Public Employment

5 December 2025

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1. Purpose

Recruitment decision making does not need to be complex; however, a finding of suitability does need to be based on evidence.

The purpose of this guideline is to outline the requirements for pre-employment screening for applicants seeking employment in the NTPS, including former NTPS employees, and for current employees seeking transfers and promotions.

Employees of the NTPS hold positions of trust in the community. It is therefore important that potential and current employees are subject to appropriate pre-employment screening checks to confirm that they are fit and proper to hold these roles. Pre-employment screening is necessary to ensure the suitability, integrity, and identity of people engaged to work in the NTPS.

2. NTPS Code of Conduct and Values

Section 16 of the *Public Sector Employment and Management Act 1993* (the Act) provides the Commissioner for Public Employment with the power to make rules, not inconsistent with the Act, relating to the good management of the public sector. These are known as Employment Instructions.

Employment Instruction 12 Code of Conduct (the Code) applies to all public sector officers. The Code sets out the basic level of behaviour and conduct expected of public sector officers.

The NTPS also has a set of values to help public sector officers understand what it means to be a public servant today. They provide principles underpinning our work in delivering services to Territorians and promote collaboration and professionalism, and guide us to achieve our best performance at work.

The NTPS values are:

Commitment to Service	The NTPS is professional, hardworking, effective, innovative and efficient, working collaboratively to achieve the best results for the Territory.
Ethical Practice	The NTPS upholds the highest standards of practice and acts with integrity in all that it does.
Respect	The NTPS respects all people, and in particular their rights as individuals.
Accountability	The NTPS is transparent and accountable in all its actions.
Impartiality	The NTPS is apolitical and provides the government with advice that is objective, timely, and based on the best available evidence.
Diversity	The NTPS values the diversity of its workforce as well as the NT population it serves.

3. Aim

All recruitment practices are vulnerable to corruption and misconduct risks, so care must be taken by the NTPS to ensure rigorous pre-employment checks are undertaken before making an offer of employment.

Robust pre-employment screening (such as requiring applicants to provide information about qualifications, work history, discipline and criminal histories, and conflicts of interest) can reduce the risk of fraudulent applications. It also assists in the prevention of employees moving between roles without previous misconduct being known or appropriately assessed.

4. Scope

This policy applies to all:

- current employees (including ongoing, fixed period, casual, secondees and redeployees)
- potential employees (applicants) including those from overseas and on visas
- former employees seeking reemployment in the NTPS
- contract employees
- students on placements (including trainees, graduates and vocational students)
- contractors and outsourced providers engaged in a capacity that requires access to sensitive and personal information.

5. Employment screening of current NTPS employees

It is not necessary for agencies to retrospectively screen NTPS employees. However, pre-employment screening is required each time an employee expresses interest in a transfer or promotion within the agency or the broader NTPS. A selection panel should not assume that an earlier selection panel satisfied all relevant pre-employment screening requirements.

Furthermore, where an existing role has been designated as one requiring a national police check or other form of screening (such as working with children or financial probity), current employees will need to provide evidence of compliance as soon as practicable .

The employee should be given at least six weeks to obtain relevant clearances from the time they are advised in writing of any additional requirement.

6. Pre-employment screening of applicants

The NTPS takes the selection, transfer and promotion of applicants seriously, and requires that all panel members must, unless there are exceptional reasons, have completed the Merit Selection Training provided by the Office of the Commissioner for Public Employment (OCPE) within the previous three years. Selection panels must also familiarise themselves with the NTPS Recruitment and Selection Policy before undertaking the assessment of applicants for a vacancy.

The pre-employment screening of an applicant's suitability to perform the relevant duties within a relevant workplace must include:

- consideration of their skills and experience confirmed by referees who are well-placed, relevant and recent
- relevance of existing qualifications
- conflicts of interest
- any other factors relevant to the position.

When assessing an applicant's suitability to work in the public sector more broadly, the panel must inform itself of any previous breaches of discipline, criminal histories, conflicts of interest, inappropriate public comments, and another other relevant factors that may pose unreasonable risk to the NTPS.

REMEMBER when a selection panel finds an applicant suitable for employment in the NTPS

the decision must align with the merit principle as defined in section 5D of the *Public Sector Employment and Management Act 1993*.

The merit principle requires that selection to a vacancy within the NTPS must be based solely on the person's suitability:

- to perform the relevant duties
- for employment in the relevant workplace; and
- for employment in the Public Sector.

And, when assessing an applicant's suitability, regard must be given to their knowledge, skills, qualifications and experience, and potential for future development.

Applicant of Potential Risk register

The Commissioner for Public Employment maintains an Applicant of Potential Risk (AOPR) register of individuals whose employment may pose a risk to the NTPS based on their employment record or application history.

NTPS selection panels are required to undertake additional pre-employment screening in respect of applicants on the register in the event they are shortlisted. The chair of the relevant selection panel will be notified if a person on the register forms part of the applicant pool, with instructions on how to proceed.

In general, the additional screening will consist of two referee checks from individuals familiar with the relevant historical circumstances. These are in addition to the referee checks the panel would conduct as part of the normal selection process, such as contacting the applicant's nominated referees. The panel should treat these as normal referee checks and ask questions relevant to the applicant's suitability.

The AOPR register is intended as a safety net to ensure that selection panels hear from referees who are well-placed, recent and relevant in determining the applicant's suitability for employment in the NTPS and the relevant role. It is not a 'do not hire' register: panels must fairly and impartially assess the applicant's

merit for employment based on all relevant information obtained during the recruitment process. This means that selection panels must not decline to shortlist an applicant purely because they are listed on the register. In general, an applicant meeting all the essential selection criteria should be shortlisted for further consideration.

Selection panels are required to provide the applicant with natural justice should a referee provide adverse comment in relation to an applicant who would have otherwise been recommended for the vacancy, in accordance with Employment Instruction 3 Natural Justice.

As part of the natural justice process, the panel should inform the applicant that referees were contacted as part of an internal pre-employment check, whether the individual is a former NTPS employee or has previously applied for an NTPS role.

Adding a person to the AOPR register

The CEO of an agency may formally request that the Commissioner for Public Employment add an individual to the AOPR register. Such requests must clearly outline the reasons the person's employment could pose a risk to the NTPS. Risks may include, but are not limited to:

- **Integrity concerns**, such as serious misconduct or unethical behaviour.
- **Reputational risk**, where the individual's past actions could bring the NTPS into disrepute.
- **Safety or security risks**, including behaviour that may compromise workplace safety or the security of public resources.
- **Legal or compliance risks**, such as breaches of legislation, policy, or contractual obligations.

The Commissioner will review the information provided and determine whether the individual should be placed on the AOPR register, ensuring decisions are consistent with principles of fairness, and the protection of public trust.

Queries and feedback

Queries and feedback regarding the register should be directed to Public Sector Appeals and Grievance Reviews unit within the Office of the Commissioner for Public Employment.

Call: 8999 4129

Email: psagr@nt.gov.au

Applying online for jobs in the NTPS

The NTPS requires applicants to answer several pre-employment screening questions online when submitting their job application for consideration. Selection panels are required to consider the responses to these questions against an applicant's suitability to perform the advertised vacancy within the relevant agency and in the broader NTPS.

What is your citizenship/residency status? To be eligible for ongoing employment in the NTPS selected applicants must:

- be an Australian citizen; or
- have been granted permanent resident status; or
- be a New Zealand citizen with a special category visa that allows them to remain and work in Australia indefinitely; or
- have a visa allowing temporary employment in Australia
    - however, employing the visa holder on a fixed-term contract would breach provisions under division 5 of part 2-9 of the *Fair Work Act 2009* (Cth)

Selection panels must assess all applicants based on merit, irrespective of visa status.
If a vacancy receives a high volume of applications from suitable applicants from within Australia, a selection panel may choose not to shortlist applicants based overseas.

If the merit selection process identifies the suitable applicant as an overseas national holding a temporary visa in Australia or residing overseas, then it may be necessary to:

- employ an applicant who holds a visa that allows them to work in Australia; or
- sponsor the worker for a visa to enable them to relocate to or remain in Australia; or
- take over responsibility of the visa sponsorship arrangement from another employer

For further information see Employing Visa Holders

What is your current employment status?

Provides the selection panel with information relating to the applicant's current employment, whether it is with the NTPS or another employer.

What is your current NTG agency?

If an applicant advises that they currently work for the NTPS, applicants are asked to state in which agency they are currently employed.

During any period of employment, have you been subject to disciplinary or formal performance management proceedings?

If an applicant answers yes to this question, and the applicant is shortlisted, the panel chair should seek further details from the applicant, such as when the matter occurred so that they can better understand the circumstances. The panel should also ask the applicant for a referee, from the relevant agency, to assist in determining whether the circumstances could affect the applicant's ability to perform the key duties and responsibilities of the advertised vacancy or otherwise impact their suitability.

A 'yes' response to this question does not automatically rule out a potential applicant. Care should be taken to ensure that only relevant factors are considered when making decisions in the selection process.

Have you received a voluntary retrenchment from NTG in the last 12 months?

A former employee who has accepted a voluntary retrenchment is not eligible for employment in the NTPS for a period of one year from the date of retrenchment, except with the approval of the Commissioner for

Public Employment.
Consideration under an agency's Special Measures plan whereby Aboriginal applicants are given priority consideration Aboriginal applicants seeking consideration under a Special Measures plan are required to provide, with their resume, a signed statutory declaration which declares that they are Aboriginal. If they are selected, they are also required to provide confirmation of Aboriginality.

Common mistakes made by selection panels

Selection processes can be corrupted in the earliest stages of recruitment, such as during the development of job descriptions when a job is designed around an applicant rather than operational need. Selection panels can also be made vulnerable by the failure of panel members to declare or manage conflicts of interest in relation to applicants. Some common mistakes are:

- engaging in processes compromised by nepotism and poor management of conflicts of interest
- promoting or re-employing employees with problematic discipline or performance issues
- recruiting applicants with unexplained attendance issues
- recruiting applicants with a criminal history that should preclude them from employment in a public service, such as fraud or theft
- failure to ensure an applicant is suitable to have access to confidential information or public monies
- not verifying who referees are, or whether the information they provide is recent and relevant to the advertised vacancy
- accepting at face value and not satisfying themselves to the accuracy of claims of relevant qualifications and licences
- appointment of an applicant based on just one positive reference.

7. Types of pre-employment screening

Comprehensive referee checks

The NTPS relies heavily on referee information about an applicant's past demonstrated work experience. It is therefore imperative that selection panels speak with referees who are recent, well placed and relevant. Selection panels are encouraged to avoid phoning mobile numbers for referees they are not familiar with. As an alternative they should call the former workplace directly and ask to speak with the named referee.

As a safety net, applicants listed on the Applicant of Potential Risk register are subject to additional referee checks as directed by the Commissioner for Public Employment.

Verification of relevant qualifications

To verify a tertiary qualification relevant to the role, selection panels may approach the relevant institution directly or conduct an online search using the various online search tools. Tertiary education (higher education) is defined as any formal education beyond high school.

Successful applicants must supply copies of all relevant tertiary qualifications listed in their resume. The selection panel must satisfy themselves of the accuracy of the qualifications claimed, prior to the selection panel's recommendation going to the delegate for approval and an offer of employment being made. Where a qualification is essential to the role, in accordance with Determination 3 of 1999, an original or certified copy of the qualification must be verified.

The selection panel must upload copies of both relevant and essential qualifications into eRecruit.

Confidentiality

Maintaining confidentiality in the workplace refers to the requirement to not disclose information that is private and not for public consumption. Confidentiality is simply the act of keeping that information private, and it is an essential quality for many NTPS employees. Determining an applicant's capability to maintain confidentiality is encouraged as a standard part of preemployment screening.

Conflict of interest - applicants

Conflict of interest can present a real risk in the NTPS, and it may be that an applicant is not aware that their personal, family or professional associations pose a risk to some work units. Depending on the agency, an offer of employment may be conditional on the consideration of if, and how, a conflict of interest can be managed.

A conflict of interest occurs when the private interests of a public sector employee interfere with official duties.

When discussing the suitability of an applicant with a referee a selection panel should ask:

> *"Please describe your relationship to the applicant detailing any potential, perceived or actual conflict of interest that the selection panel should be aware of?"*

When discussing a vacant position with an applicant a selection panel should ask an applicant:

> *"Based on your personal circumstances and what you know about the NTPS, this agency and this role, do you have any potential, perceived or actual conflict of interest that the selection panel should be aware of?"*

The outcomes of these questions should be documented in the selection report.

Conflict of interest – selection panels

A conflict of interest in a selection process arises when a panel member has, or may be perceived as having, a private interest in the outcome of the recruitment.

Selection panel members must discuss actual, perceived and potential conflicts of interest before any shortlisting takes place and complete the mandatory conflict of interest disclosure form.

If the panel has a potential conflict of interest, they must discuss the potential conflict with the other panel members and as a group decide how the panel will progress. Considerations should include:

- whether the panel member should remain on the panel
- if the panel member is to remain, how the panel will manage the perception of the conflict or bias and how this will be documented, and
- whether the panel member/s consider it necessary to inform the delegate of the declared matters for noting or endorsement of the proposed management strategy. This is particularly recommended where there is uncertainty or differing views regarding the nature of the conflict or the appropriateness of the management approach.

All panel members, including the scribe, must complete the mandatory Conflict of Interest Declaration Form, which must be uploaded to eRecruit along with the other recruitment paperwork.

Criminal history clearance

Increasingly, agencies in the NTPS require a criminal history clearance before an applicant commences in a role. Applicants and selection panels who wish to know more about applying for a criminal history check can click here.

If a criminal history clearance is an essential requirement of the role, agencies should not commence an applicant in an ongoing role without receiving evidence of a recent criminal clearance.

If an applicant discloses a criminal record, consideration must be given to the relevancy of it in relation to the vacancy. The *Anti-Discrimination Act 1992* (NT) defines irrelevant criminal record as a spent record within the meaning of the *Criminal Records (Spent Convictions) Act 1992* or record expunged under the *Expungement of Historical Homosexual Offence Records Act 2018*; or a record relating to arrest, interrogation or criminal proceedings where:

- no further action was taken in relation to the arrest, interrogation or charge of the person no charge has been laid
- the charge was dismissed
- the prosecution was withdrawn
- the person was discharged, whether or not on conviction the person was found not guilty
- the person's finding of guilt was quashed or set aside, or the person was granted a pardon
- the circumstances relating to the offence for which the person was found guilty are not directly relevant to the situation in which the discrimination arises.

Working with children clearance

Ensuring the safety of children and young people in the NTPS is vital. Employees who come into contact with children and young people as part of their daily work must have a working with children clearance (Ochre Card).

A working with children clearance is an assessment of the risk of harm or exploitation that an applicant may pose to children. It involves a check of an applicant's:

- police history
- employment records

- character references
- reports about recent behaviour.

The check is conducted by the Northern Territory Screening Authority, appointed by the Minister for Children. A working with children clearance is valid for two years and is issued by SAFE NT. Applicants can apply for, or renew their working with children clearance here.

Medical clearance

Some roles within the NTPS may require a medical clearance before an offer of employment is finalised. A medical clearance states that an applicant is work ready or fit to return to work. It confirms they have the capacity to perform their duties without exposing themselves or anyone else to an unnecessary level of risk.

A medical clearance is not required for all NTPS roles; however, if the role requires that a person be physically fit and capable it is a good idea. Care should be taken not to require a medical clearance where it is not strictly needed.

Ability to handle public monies and/or have access to financial resources

Public funding, in its simplest terms, is funding that comes from the public treasury. It is the taxpayers' money, and the funding of health, education, the environment, community development, and other public service programs are some of the ways it is spent for the common good.

NTPS roles involving the use of, or providing access to, public monies or financial resources may require additional pre-employment screening in the form of credit history or bankruptcy checks to identify any defaults or stress that could pose an integrity risk.

Compliance with the NTPS Code of Conduct and Values

In order to maintain public confidence in the integrity of the NTPS, a public sector officer must exhibit, and be seen to exhibit, the highest ethical standards in carrying out their duties, and must pursue, and be seen to pursue, the best interests of the people of the Northern Territory. The NTPS Values underpin Employment Instruction 12 - Code of Conduct and provide standards of expected behaviour and conduct for all public sector officers, promote collaboration and professionalism, and guide public sector officers to achieve their best performance at work.

A selection panel must satisfy itself that an applicant is capable of understanding and complying with the NTPS Code of Conduct and its Values.

8. Training

Learn more about pre-employment screening by attending Merit Selection Training.

To be eligible to sit on a selection panel in the NTPS, selection panel members must have completed merit selection training within the previous three years.

Merit selection training is suitable for all NTPS employees irrelevant of experience, level or classification. This face-to-face training, facilitated by OCPE and is offered across the Territory each year.

The face-to-face training is the preferred and recommended option, with eLearning available for employees who wish to refresh their merit selection knowledge.

For more information, refer to the online training calendar.

9. Need more assistance with pre-employment screening?

There are a range of different pre-employment screening checks that can be used to verify information about shortlisted applicants. For high-risk roles, agencies may wish to consider engaging external service providers to undertake the following screenings:

1. Employment history checks
2. National and international criminal history checks
3. Entitlement to work (visa) checks
4. Licence checks
5. Qualification checks
6. Financial interest checks
7. Working with children checks
8. Security and other clearances
9. Professional membership with an association
10. Health assessments

10. NTPS Resources

The Merit Selection Training course and Merit Selection Training Manual provide best-practice guidance as to merit-based recruitment process in accordance with the PSEMA and the NTPS Recruitment and Selection Policy.

All recruitment templates, including the mandatory Conflict of Interest Disclosure Form and Selection Panel Checklist, can be downloaded from NTG Central. These can be located by typing 'recruitment templates' in the search bar.